

Number 15 *of* 1999

ROAD TRANSPORT ACT 1999

REVISED

Updated to 30 June 2016

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AN ACT TO AMEND AND EXTEND THE LAW IN RELATION TO ROAD TRANSPORT, TO AMEND SECTIONS 12 AND 16 OF THE ROAD TRAFFIC ACT, 1961, TO MAKE PROVISION IN RELATION TO THE CONFERRAL OF ADDITIONAL POWERS ON CÓRAS IOMPAIR ÉIREANN AND TO PROVIDE FOR RELATED MATTERS. [23*rd June*, 1999]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

Interpretation.

1.—(1) In this Act—

"the Act of 1935" means the Road Transport Act, 1935;

"the Act of 1978" means the Road Transport Act, 1978;

"the Act of 1986" means the Road Transport Act, 1986;

['Community licence' means a Community licence—

(*a*) issued under Article 4 of Regulation (EC) No. 1072 of the European Parliament and of the Council of 21 October 2009[4] to a haulier carrying goods by road for hire or reward, or

(*b*) issued under Article 4 of Regulation (EC) No. 1073 of the European Parliament and of the Council of 21 October 2009[5] to a carrier of passengers by coach and bus for hire or reward;**]**

['international road haulage operator's licence' means an international road haulage operator's licence granted under section 2 of the Road Traffic and Transport Act 2006;

'international road passenger transport operator's licence' means an international road passenger transport operator's licence granted under section 2 of the Road Traffic and Transport Act 2006;

'Minister' means Minister for Transport;

'national road haulage operator's licence' means a national road haulage operator's licence granted under section 2 of the Road Traffic and Transport Act 2006;

[4] OJ No. L 300, 14.11.2009, p.72

[5] OJ No. L 300, 14.11.2009, p.88

held under an irrevocable trust in accordance with section 44(7) of the Transport Act, 1950.

(6) The Minister may, if he or she considers it appropriate to do so and is so requested by the Board, specify by regulations for the purposes of *subsection (3)* a superannuation scheme made by the Board or in relation to which the Board may exercise any power formerly exercisable by the person who made the scheme.

(7) In this section "the Board" means Córas Iompair Éireann.

TABLE

Subsection (1).

Part I

Córas Iompair Éireann Salaried Officers' and Clerks' (G.S.R.) Superannuation Scheme.
A scheme made under rule 54 of the Scheme aforesaid.
A scheme made under section 44 of the Transport Act, 1944 (No. 21 of 1944) and confirmed under section 45 of that Act.
A scheme made under section 44 of the Transport Act, 1950 (No. 12 of 1950) or referred to in section 45 of that Act or made under a power contained in such a scheme.
A scheme made under a power conferred under section 25 of the Transport (Re-organisation of Córas Iompair Éireann) Act, 1986 (No. 31 of 1986).

Part II

Subsection (5).

Great Northern Railway Company (Ireland) Pension Fund for Wages Staff (Amendment) Scheme (Confirmation) Order, 1995 (S.I. No. 317 of 1995).
Great Southern Railway Company Pension Scheme for Regular Wages Staff (Amendment) Scheme (Confirmation) Order, 1995 (S.I. No. 318 of 1995).
Córas Iompair Éireann Pension Scheme for Regular Wages Staff (Amendment) Scheme (Confirmation) Order, 1996 (S.I. No. 115 of 1996).

Continuance of carrier's licence granted under section 3 of Act of 1986.

20.—A carrier's licence granted under section 3 of the Act of 1986 (repealed by this Act) which is in force immediately before the repeal of this section shall continue in force for the period stated in the licence and be deemed to have been granted under any regulations in force and made under section 3 of the European Communities Act, 1972, under which a licence granted—

(*a*) entitles the holder to carry on a merchandise road transport business for reward in the State, and

(*b*) in the case of an international road freight carrier's licence, qualifies the holder to carry on a merchandise road transport business for reward outside the State,

with such vehicles as may be specified in the licence.

Amendment of section 9 of Carriage of Dangerous Goods by Road Act, 1998.

21.—Section 9 of the Carriage of Dangerous Goods by Road Act, 1998, is hereby amended by—

(*a*) the substitution for subsection (1) of the following subsection:

"(1) Where a member of the Garda Síochána alleges to a person that the member suspects that such person has committed or is committing an offence resulting from a contravention of this Act or regulations made under section 17 in connection with the operation on a public road of transport equipment, the member may require of such person his or her name and address, and if